

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tiffany Aron	Team: Team # 1	CCRB Case #: 200101164	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 12/11/2000 4:00 PM	Location of Incident: Inside the 115 Pct	18 Mo. SOL 6/11/2002	Precinct: 115
Date/Time CV Reported Tue, 02/20/2001 5:35 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/20/2001 5:37 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Matthew Fraher	00254	879665	115 DET
2. LT Maximo Tolentino	00000	891112	115 PCT

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Matthew Fraher	Discourtesy: Detective Matthew Fraher spoke obscenely and/or rudely to § 87(2)(b) [REDACTED]	[REDACTED]
B.LT Maximo Tolentino	Discourtesy: Lieutenant Maximo Tolentino spoke obscenely and/or rudely to § 87(2)(b) [REDACTED]	[REDACTED]

Synopsis

On December 8, 2000, § 87(2)(b) called the 115 Precinct regarding the whereabouts of her § 87(2)(b) old daughter, § 87(2)(b). She spoke with Lt. Maximo Tolentino and explained that, following an argument, her daughter left home and went to a friend's house, where she stayed for several days. Lt. Tolentino told § 87(2)(b) that the friend's mother brought § 87(2)(b) into the precinct and a child abuse complaint had been made against her which would have to be investigated. Det. Matthew Fraher was assigned to the case on Monday December 11, 2000 and interviewed § 87(2)(b) the same day. After notifying ACS and conferring with the District Attorney's office, Det. Fraher arrested § 87(2)(b) the following day and charged her with § 87(2)(b).

§ 87(2)(b) stated that Lt. Tolentino was discourteous to her during their phone conversation and that Det. Fraher was discourteous during his interview with her, which took place one-on-one, in a room at the stationhouse. § 87(2)(g)

Summary of Complaint

On December 3, 2000, § 87(2)(b) and her § 87(2)(b)-old daughter, § 87(2)(b) had an argument, after which § 87(2)(b) went to sleep at a friend's house and stayed for a couple of nights. § 87(2)(b) knew where her daughter was and figured she would see her Monday morning because she and § 87(2)(b) father had an appointment with the school guidance counselor.

A few days later, the mother of § 87(2)(b) friend, who is a § 87(2)(b) confronted § 87(2)(b) at a bowling alley and accused her of kicking § 87(2)(b) out of the house. § 87(2)(b) informed the woman that the girls had been skipping school all week. The woman must have called the police because on December 8, 2000, Lt. Tolentino, from the 115 Precinct called § 87(2)(b) and asked her if she knew where § 87(2)(b) was.

§ 87(2)(b) told him that her daughter was on her way home. Lt. Tolentino told her that she didn't even know where she was because he had her right there at the precinct. He told her that a report had been made stating that she had thrown § 87(2)(b) out. Lt. Tolentino told her to come and pick her daughter up. § 87(2)(b) stated that she was cooking and that her other child was in the shower and she didn't want to leave her alone.

Lt. Tolentino accused her of being a drug addict and said that he wouldn't send § 87(2)(b) back to "that hell hole." He then asked if she would let § 87(2)(b) in, if patrol officers brought her home and § 87(2)(b) said she would. A report was taken and Lt. Tolentino told her that the case would be referred to ACS. On December 10, 2000, § 87(2)(b) got into an argument with her parents, during which she bit her father, § 87(2)(b) and left the house. Lt. Tolentino called § 87(2)(b) and told her that § 87(2)(b) had been taken to a hospital. § 87(2)(b) went to the precinct, to pick § 87(2)(b) up.

The next day, Det. Matthew Fraher called § 87(2)(b) and asked her to come down to the precinct. When she arrived, Det. Fraher asked her to go with him inside a waiting room. Det. Fraher put a Miranda warning on the table. § 87(2)(b) asked if that was what was handed out when someone was being arrested.

Det. Fraher stated, “§ 87(2)(b) shut the fuck up and read it.” She asked if this was concerning her or her daughter. He told her that he was the one asking questions, not her. He asked her to read and initial it if she understood.

She read and initialed the first question and asked again why she was reading it. He said, “Because you’re nothing but a fuck-up.” He then told her that while she tried to be a single parent, she couldn’t make it. He finally told her to cut the shit and read the other questions. By the time she got to the last one, he told her she was under arrest, for § 87(2)(b) because § 87(2)(b) had gone without food, shelter or clothing for four days. She told him that her daughter has a set of keys and that she was able to come and go.

Det. Fraher told her that she was a drug addict and an alcoholic and that he had evidence to prove it. § 87(2)(b) then realized that he might have had her confused with her sister, § 87(2)(b) who had recently passed away and who did use drugs. When she started to get upset he stated, “What’s the matter with you? You’re not a bad looking broad. Can’t you find a husband?” § 87(2)(b) stayed overnight and saw a judge the following day.

Results of Investigation

§ 87(2)(b) was interviewed at CCRB on March 9, 2001. She did not articulate why she filed this complaint two months after the date of occurrence. It should also be noted that mediation was offered to § 87(2)(b) which she declined.

§ 87(2)(b) mentioned that she and Det. Fraher have know each other for many years, through her community work and she believed that when he called her a drug addict, he confused her with her sister § 87(2)(b) who was an addict and had recently died from an overdose. § 87(2)(b) returned to court on § 87(2)(b) and called on March 20, 2001 to report that the charges were dismissed.

Det. Matthew Fraher

Det. Matthew Fraher was interviewed on May 11, 2001. He was randomly assigned to investigate this case, but explained that he has known § 87(2)(b) for eight years and that she is well known to the department. § 87(2)(b) had been a complainant of his several years ago, when she was involved with an HIV positive man, with whom she used to do drugs. The man, who is also well known to the department, had been arrested by Det. Fraher numerous times for aggravating and harassing § 87(2)(b) based on her complaints.

The frequency of the complaints resulted in Det. Fraher being assigned to handle all of § 87(2)(b)’s future complaints exclusively. Det. Fraher stated that this decision was partly based upon the fact that § 87(2)(b) tends to talk a lot and is not easy to deal with. At the time, he explained that he was the only person patient enough to sit with her. This situation ended when he was transferred to the Special Victims Unit, over two years ago. Det. Fraher stated that his assignment to this child abuse investigation was completely random. He added that his relationship with § 87(2)(b) was always professional and handling her case did not pose a conflict for him in any way.

On December 8, 2000, a complaint had been filed claiming § 87(2)(b) had kicked her daughter out of the house and made no attempt to look for her. On Friday December 8, 2000, § 87(2)(b) brought the girl to a bowling alley, knowing that § 87(2)(b) would be there and tried to reunite the two. According to complaint report # § 87(2)(b) § 87(2)(b) said to the correction officer, “I don’t want that fucking kid anymore,” and walked away.

Det. Fraher started working on the case by making calls and took notes regarding when the precinct and ACS were first notified about the girl and when she was returned to her home. Det. Fraher also learned the girl, § 87(2)(b) has filed a separate complaint against her father, § 87(2)(b) after he pushed her to the ground, causing injury to her buttocks, on December 10, 2000. § 87(2)(b) was taken to § 87(2)(b) that same day. Another detective from the squad, Det. Doyle, was working that night and he took down all of the information and included it in the case file.

On Monday, December 11, 2000, Det. Fraher interviewed § 87(2)(b) for two hours. He explained that her version of events is the only one that differed greatly from everyone else’s version. He told her at the beginning of the interview that she was being investigated for child abuse and that he was going to be blunt with her. Det. Fraher stated that he has investigated over 600 child-abuse cases and that he is always candid with people. It was his opinion that § 87(2)(b) needed help and he wanted to find a way to get her into counseling, to avoid having to involve the police and make arrests. Det. Fraher stated that § 87(2)(b) admitted that she had a problem dealing with her daughter and that she needed help.

Det. Fraher referred to § 87(2)(b)’s prior history of drug and alcohol abuse, reminding her of how she used to use drugs in her home a few years ago, and how that has affected her daughter. Det. Fraher admitted that while he did refer to § 87(2)(b)’s prior drug use, he denied that he ever called her a “fuck-up.” He also denied that he ever told her to shut the fuck up or that he said anything about her not being “a bad-looking broad.”

Det. Fraher stated that it was not his intention to arrest § 87(2)(b) and that he wanted to find out what was happening within this family. Det. Fraher explained to § 87(2)(b) that one of the possibilities of her returning the following day was that she could be arrested and stated that she understood this.

Lt. Maximo Tolentino

Lt. Maxim Tolentino was interviewed on May 22, 2001. He recalled that a § 87(2)(b) brought a young girl into the precinct and told him that the girl had left home because she was the victim of child abuse. Lt. Tolentino notified ACS and made arrangements to have the case investigated by a detective. He decided that the child should remain with § 87(2)(b), because she seemed to feel comfortable with the woman and because things were bad at home.

Approximately one or two hours later, Lt. Tolentino received a call, transferred from the switchboard operator, from § 87(2)(b) who was inquiring about her daughter. § 87(2)(b) told Lt. Tolentino that ACS had already investigated the case and that there was no need for the police to continue with another investigation.

Lt. Tolentino explained that because the police had just been informed of the situation, ACS was now required to investigate further. He explained that until that was finished, there was nothing he could do about releasing her child to her.

Lt. Tolentino explained during his interview that, based on the tone of the conversation, § 87(2)(b) seemed more concerned about possibly being bothered by another ACS investigation than by the fact that her daughter had filed a new complaint against her.

Lt. Tolentino explained that he had never had any prior contact with or knowledge of § 87(2)(b) or her prior arrests and that the first time he became involved with the case was when § 87(2)(b) brought the girl into the precinct. He stated that he only spoke to § 87(2)(b) once over the phone and that she called him. His only responsibility was to make sure that initial notifications were made and that the case was passed along to a detective for further investigation. He explained that as a platoon commander, his job is to make sure things run smoothly and that all administrative decisions are his responsibility. He receives numerous phone calls a day and does not log the ones that come to the front desk. He explained that many of the calls are from people wishing to get an explanation from a supervisor and that most people are satisfied afterwards.

Lt. Tolentino responded, “Absolutely not, “ when asked if he ever referred to § 87(2)(b) home as a hell hole or whether he ever called her an alcoholic or a drug addict. Lt. Tolentino had not had any further contact with § 87(2)(b) since that phone call.

Documents

A domestic incident report, dated December 3, 2000, indicates that § 87(2)(b) and her daughter were involved in a verbal dispute, which resulted in § 87(2)(b) being kicked out of the house. (Enclosure 9) § 87(2)(b) then filed UF-61 #§ 87(2)(b) a few days later, on December 8, 2000. (Enclosure 10)

Two additional domestic incident reports were filled out on December 10 and December 12, respectively. (Enclosures 13, 15) In the first report, § 87(2)(b) stated that her father tried to choke her and pushed her to the ground, which resulted in UF-61 #§ 87(2)(b) (Enclosure 14) In the second report, § 87(2)(b) stated that his daughter bit him, but that he did not want to press charges. This report also indicated that a social worker from ACS was notified.

The command log entry from the 115 precinct and the arrest report indicates that § 87(2)(b) was arrested by Det. Fraher on December 12, 2000 and charged with § 87(2)(b). (Enclosures 16, 17) A printout of § 87(2)(b)'s arrest history is also included and indicates that there are no prior arrests on her record. (Enclosure 19a) § 87(2)(b) stated during her CCRB interview that she had never been arrested before and Det. Fraher, when referring to her drug and alcohol problem, confused her with her sister, § 87(2)(b)

Conclusions and Recommendations

A) Discourtesy: Det. Matthew Fraher spoke obscenely and/or rudely to

§ 87(2)(b)

Det. Fraher and § 87(2)(b) were alone in an interview room when discourteous statements were allegedly made. There are no witnesses to these allegations, § 87(2)(g)

§ 87(2)(g)

As he was investigating this child abuse case, Det. Fraher stated that § 87(2)(b)'s version of what happened was the only one that differed from everyone else's story. § 87(2)(b) stated that she knew Det. Fraher through community work and through § 87(2)(b). Det. Fraher stated that she never worked at the precinct and that they know each other because she was a frequent complainant of his several years ago.

§ 87(2)(b) stated that it was not she but her sister § 87(2)(b) who had a drug and alcohol problem, though Det. Fraher described § 87(2)(b)'s long battle with drugs and alcohol and her involvement with another addict whom Det. Fraher arrested numerous times several years ago.

Det. Fraher admitted that he spoke directly and bluntly to § 87(2)(b) in the interview room. His objective was not to arrest her, § 87(2)(g)

He wanted to find out what was wrong within her family and believed counseling was a better option for § 87(2)(b) who admitted to him that she needed help. Det. Fraher admitted that he did refer to her former drug and alcohol abuse, but denied that he ever cursed at her or referred to her as "not a bad looking broad." He stated that he spoke to her as candidly as he would have with anyone else, and brought up her past because he wanted to show her the negative affect it has had on her child.

§ 87(2)(g)

B) Discourtesy: Lt. Maximo Tolentino spoke obscenely and/or rudely to

§ 87(2)(b)

Lt. Tolentino did not instantly recall whom § 87(2)(b) was when he was notified to appear at CCRB for an interview. He stated that he had to look up information in the case file to recall this woman, as he only recalled speaking on the phone to her

once. He recalled § 87(2)(b) bringing a young girl into the precinct and making a child abuse complaint and then making the proper notifications and case assignments to other officers.

§ 87(2)(g) Lt. Tolentino recalled that § 87(2)(b) phoned him at the front desk and the two only spoke that one time. Lt. Tolentino said that he never called her on any other occasion though during her interview, § 87(2)(b) stated that he called her a second time, at home.

Lt. Tolentino explained during his interview that, as platoon commander, he receives a lot of phone calls and that he never logs incoming calls to the front desk. He is responsible for making all administrative decisions which include making notifications for, in this instance, a child abuse case. § 87(2)(g)

§ 87(2)(g) Det. Fraher stated that he received information about § 87(2)(b) being taken to the hospital from Det. Doyle, who happened to be working that night and recorded everything for the case file.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: